

25VECV00031 25VECV00031

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-07

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Case Number: 25VECV00031 Hearing Date: August 7, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JABARI

WHITFIELD,

Plaintiff,

vs.

KAREN ARIAS, ULISES ARIAS, and DOES

1 to 10,

Defendants.

CASE NO: 25VECV00031

PLAINTIFF/CROSS-DEFENDANT

JABARI WHITFIELD'S MOTION FOR LEAVE TO FILE CROSS-COMPLAINT

Dept. W

8:30 a.m.

August 7, 2026

For the reasons stated below, the
Court GRANTS Plaintiff's Motion for Leave to File a Cross-Complaint.

Background

This

is a motor vehicle negligence case. Plaintiff/Cross-Defendant is Jabari Whitfield. Defendants are Karen and Ulises Arias. Plaintiff alleges that on March 8, 2024, he was driving through an intersection when Defendants negligently made a left-hand-turn, crashing their vehicle into Plaintiff. At the time of the accident, Defendants had a passenger in their car – Angel Sandoval.

On January 3, 2025, Plaintiff filed suit against Defendants, alleging motor vehicle and general negligence.

On February 13, 2025, Defendants, along with their passenger, Angel Sandoval, filed a Cross-Complaint against Plaintiff, alleging that Plaintiff was the negligent driver, and injured all three of them when he ran a red light through the intersection.

Now, Plaintiff moves for leave to file a Cross-Complaint against Cross-Complainants Karen Arias, Ulises Arias, and Angel Sandoval, alleging: 1) indemnity, 2) apportionment of fault, 3) comparative fault, and 4) declaratory relief.

Discussion

Plaintiff/Cross-Defendant moves under CCP § 426.50 for leave to file a cross-complaint against Defendants for indemnity, apportionment of fault, and comparative fault. (Mot. for Leave, p. 2:2-8.)

Under CCP § 426.50, "[a] party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall

grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith." (CCP § 426.50 [emphasis added].)

Under this statute the

Court must grant leave to file a cross-complaint, so long as the party who failed to plead acted in good faith. Here, Plaintiff asserts that, as a result of counsel's excusable neglect, they failed to file this proposed cross-complaint when they answered the first Cross-Complaint. (Mot. for Leave, p. 4:7-8.) Plaintiff also argues that this failure was in good faith, as, at the time they filed their Answer to the Cross-Complaint, they did not have all the facts – namely, the traffic collision report and the deposition testimony of cross-complainants. (Id. p. 5:12-14.) The court agrees that there is no evidence Plaintiff acted in bad faith in bringing this proposed Cross-Complaint.

The Court finds no evidence that granting this motion will prejudice Cross-Complainants. First, this motion is unopposed. (Notice of Non-Opposition, 7/31/26.) Second, the trial date for this case is scheduled is not until November 23, 2026. Third, the proposed Cross-Complaint only raises claims relating to the levels of fault in the same underlying accident. (Foster Decl. Ex. A, p. 1.) Therefore, it is unlikely that additional discovery will be necessary if this motion is granted. The Court finds there is no evidence that this amendment will prejudice Cross-Complainants.

For these reasons, the Court GRANTS Plaintiff's Motion for Leave to File a Cross-Complaint.

Conclusion

The Court GRANTS Plaintiff's Motion for Leave to File a Cross-Complaint.

IT
IS SO ORDERED.

Plaintiff TO GIVE NOTICE.